Congressional Research Service
Informing the legislative debate since 1914

Federal Government Shutdowns and the Impact on Civil Aviation

October 22, 2026

Congressional Research Service
https://crsreports.congress.gov
R49491

CRS REPORT
Prepared for Members and
Committees of Congress

Congressional Research Service
Informing the legislative debate since 1914

Federal Government Shutdowns and the Impact on Civil Aviation

When federal agencies and programs do not receive funding after full-year or interim appropriations expire, they experience a "funding gap." If funding does not resume in time to continue government operations, the government generally begins a "shutdown" of affected activities. Shutdowns can be government-wide or partial (i.e., affecting certain federal agencies and programs) depending on which appropriations lapse.

The federal government plays a key role in operating the National Airspace System, providing air traffic control and air navigation services, and conducting aviation security operations at the nation's airports. Shutdowns can affect some civil aviation programs that are administered by the Department of Transportation (DOT), mostly those managed by the Federal Aviation Administration (FAA), as well as aviation security functions carried out by other federal entities, particularly the Transportation Security Administration (TSA) under the Department of Homeland Security (DHS).

Shutdowns over the past decade have been lengthier than those during previous lapses in appropriations and have directly impacted civil aviation operations. Federal workers who perform functions integral to these civil aviation operations are generally excepted from furlough during shutdowns. These workers typically are not paid during a shutdown, which has demonstrated impacts on absenteeism and resignations, potentially affecting the federal government's ability to provide full aviation services without disruption or degradation. Quantifiable indicators of these impacts include increased flight delays and cancellations, extended wait times at airport security checkpoints, temporary FAA-mandated flight reductions at major U.S. airports, and forgone revenues for airlines, airports, and related businesses.

Some Members of Congress introduced bills that would have ensured the continuation of aviation operations until funding through normal appropriations was restored during the lapses in FY2026. Some of those bills in the 119th Congress focused on the use of continuing appropriations to pay essential government workers or, specifically, essential FAA and TSA personnel during shutdowns; others proposed to establish certain types of automatic continuing resolutions that would provide a fallback funding source for core aviation safety operations in the event of future funding gaps. Other bills seek a more permanent solution for aviation security functions. For example, the Pay TSA Act of 2026 (H.R. 7941) proposes the creation of a dedicated trust fund that would be funded by passenger security fees and available to expend during a lapse in appropriations. Language in H.R. 7941 expressly prioritizes the use of money in the fund during a shutdown for salaries, benefits, and overtime compensation for TSA screeners; maintenance of staffing levels at aviation security screening checkpoints; and other operational expenses directly supporting frontline aviation security personnel. Some Members may wish to leave in place the balance between the continuation of government services and the congressional power of the purse that exists during a shutdown.

SUMMARY

R49491

October 22, 2026

Bart Elias
Specialist in Aviation Policy

Rachel Y. Tang
Analyst in Transportation and Industry

For a copy of the full report, please call 7-5700 or visit www.crs.gov.

Contents

Introduction 1
Federal Government Shutdowns 2
Funding Lapses and Shutdowns 2
Agency Planning and Preparation 3
Federal Aviation Administration 4
Transportation Security Administration 5
Funding of Aviation Programs and Operations 6
FAA Operations and Programs 6
Lapse in Authorization 7
Lapse in Appropriations 7
Transportation Security Administration Funding 8
Shutdown Impact on Civil Aviation 10
Overall FAA Programs and Operations 10
Air Traffic Control Operations 10
Air Traffic Controller Hiring and Training 13
Aviation Safety Oversight 14
TSA Aviation Security Functions 15
Airports, Airlines, and Related Businesses 17
Partial Closures of Airport Terminals and Concourses During 2019 Shutdown 17
Flight Delays and Temporary Flight Reductions During 2025 Shutdown 18
Potential Legislative Actions 19
Legislative Proposals Focused on FAA 20
Legislative Proposals Focused on TSA 20

Contacts

Author Information 21

Introduction

When Congress does not appropriate funding for federal agencies and programs or when the President and Congress do not reach an agreement on funding measures after full-year or interim appropriations (commonly known as a "continuing resolution [CR]") expire, affected government agencies and programs will experience a lapse in appropriations. This funding disruption is known as a "funding gap" or commonly referred to as a federal government "shutdown." Shutdowns can be government-wide or partial, meaning they affect all or certain federal agencies and programs depending on what appropriations lapse. Generally, shutting down agencies and programs results in federal employee furloughs and suspensions of programs and operations.

Shutdowns can affect some civil aviation programs that are administered by the Department of Transportation (DOT), including those managed by the Federal Aviation Administration (FAA), as well as aviation security functions carried out by other federal entities that also play significant roles in civil aviation, particularly the Transportation Security Administration (TSA) under the Department of Homeland Security (DHS). Although large numbers of federal employees are typically furloughed during a shutdown, many FAA and TSA employees are "excepted," meaning they are to remain on the job. During a shutdown, pay for these excepted workers is typically withheld until appropriations are enacted. FAA air traffic controllers and systems technicians, as well as TSA screeners and certain other employees, are excepted because their work is directly tied to the operation of the civil aviation system and considered essential to protect lives and property. Various other employees at these agencies also continue to work because their duties are linked to funding that is separate from annual appropriations or because their work is directly related to certain presidential powers, constitutional requirements, or statutes that expressly or implicitly except them from being furloughed. Excepted personnel may experience personal financial burdens as they work while their pay is deferred.[1] These financial strains are associated with increased callouts (employees' requests for unscheduled leave or temporary furlough for personal reasons) and resignations during shutdowns.[2]

This report focuses on federal government shutdowns that are associated with lapses in annual appropriations and the direct effect on civil aviation operations and programs. It examines impacts on civil aviation during selected shutdowns: the 2018-2019 partial government shutdown; the government-wide shutdown in October-November 2025; the partial government shutdown from January 31 through February 3, 2026; and the partial shutdown affecting DHS from February 14 to April 30, 2026. It also provides (1) a brief overview of the funding mechanism supporting agency operations and aviation-related programs; (2) discussion and analysis of how a lapse in appropriations and resulting government shutdown may affect DOT (particularly FAA) and TSA, as well as the recipients of their services (e.g., airlines, airports, and their customers); and (3) legislative options and actions that might avert or alleviate the effects of a future shutdown.

[1] Testimony of Transportation Security Administration (TSA) Senior Official Performing the Duties of the Administrator Ha McNeill in U.S. Congress, House Committee on Homeland Security, *Funding Lapse and Security Gaps: Assessing the Harmful Impacts of the DHS Shutdown on Americans*, hearing, 119th Cong., 2nd sess., March 25, 2026, https://homeland.house.gov/wp-content/uploads/2026/03/2026-03-25-HRG-Testimony.pdf.

[2] For example, see Eric Katz, "It's Not Just TSA: Call Outs, Resignations Plague a Range of Shuttered Agencies," *Government Executive*, January 24, 2019, https://www.govexec.com/pay-benefits/2019/01/its-not-just-tsa-call-outs-resignations-plague-range-shuttered-agencies/154402/; and Oriana Pawlyk and Myah Ward, "Shutdown Enters Critical Phase as TSA Shortages Expected to Expand," *Politico*, March 19, 2026, https://www.politico.com/news/2026/03/19/like-a-snowball-going-down-the-hill-shutdown-standoff-risks-nationwide-travel-chaos-00836555.

Federal Government Shutdowns

Funding Lapses and Shutdowns

When federal agencies and programs do not receive funding after full-year or interim appropriations expire, they experience a funding gap due to a lapse in appropriations. If funding does not resume in time to continue government operations, the government generally begins a shutdown of affected activities,[3] though not all funding gaps in the past led to government shutdowns.

Twenty-three lapses in appropriations occurred between FY1977 and FY2026. Some of these funding gaps were brief and do not appear to have resulted in government shutdowns, while some other funding gaps did lead to shutdowns.[4] The four most recent shutdowns, examined in detail in this report, were lengthier and more disruptive to civil aviation than prior shutdowns. Some observers have attributed the current budget process and political climate to shutdowns that may be longer, more frequent, and more disruptive than in the past.[5]

Since the federal government plays a key role in operating the National Airspace System (NAS), providing air traffic control (ATC) and air navigation services, and conducting aviation security operations at the nation's airports, the aviation industry can be directly and significantly impacted by government shutdowns. Even though federal workers who perform these services are generally excepted from furlough during a shutdown, the fact that they typically are not paid during a shutdown has demonstrated impacts on absenteeism and resignations, potentially affecting the federal government's ability to fully provide these services without disruption or degradation.

The federal government's discretionary spending is generally funded through the passage of 12 separate annual appropriations bills from 12 appropriations subcommittees in the House of Representatives and their counterparts in the Senate, each covering distinct areas of federal functions (such as defense, homeland security, transportation, and agriculture). When there is a lapse in all these appropriations bills, then a full-scale government-wide shutdown occurs. If a lapse occurs to some of the appropriations bills, then there is likely to be an agency-specific partial shutdown. FAA activities are covered in DOT appropriations, and TSA aviation security functions are funded under DHS appropriations.

On October 1, 2018, the beginning of FY2019, five of the twelve appropriations bills were enacted in two consolidated appropriations bills,[6] and the remaining seven were funded under two CRs. Because no legislative agreement was reached to extend the CRs when they expired, a funding gap began at midnight on December 21, 2018, which led to a partial government

[3] For more detailed information about government shutdowns, see CRS Report R47693, *Government Shutdowns and Executive Branch Operations: Frequently Asked Questions (FAQ)*, coordinated by Taylor N. Riccard; and CRS Report R41759, *Past Government Shutdowns: Key Resources*, by Justin Murray and Carol Wilson.

[4] For a list and more detailed description of these funding lapses and shutdowns, see CRS Report RS20348, *Federal Funding Gaps: A Brief Overview*, by James V. Saturno.

[5] Luke Broadwater, "Shutdown Becomes Longest in History, as Trump Officials Threaten Pain Could Worsen," *New York Times*, November 4, 2025, https://www.nytimes.com/2025/11/04/us/politics/trump-administration-pain-shutdown.html; and Nora Delaney, "Explainer: Why Government Shutdowns Keep Happening in the United States," Harvard Kennedy School, October 8, 2025, https://www.hks.harvard.edu/faculty-research/policy-topics/democracy-governance/explainer-why-government-shutdowns-keep.

[6] Energy and Water, Legislative Branch, and Military Construction and Veterans Affairs Appropriations Act, 2019 (P.L. 115-244); and Department of Defense and Labor, Health and Human Services, and Education Appropriations Act, 2019 and Continuing Appropriations Act, 2019 (P.L. 115-245).

shutdown. The federal agencies funded in these seven appropriations bills, including DOT and DHS, were required to shut down their operations. This partial shutdown lasted for 34 days until a CR (P.L. 116-5) was signed into law on January 25, 2019, which allowed affected government departments and agencies to reopen.

On October 1, 2025, the beginning of FY2026, none of the 12 regular appropriations bills had been passed, and no CR had been enacted to fill the funding gap. As a result, a government-wide shutdown occurred that lasted 43 days until P.L. 119-37 was signed into law on November 12, 2025. P.L. 119-37 incorporated three regular appropriations acts for FY2026 and a CR covering the remaining nine (including DOT and DHS) through January 30, 2026.[7] To date, this is the longest government-wide shutdown in U.S. history.

Another funding gap occurred on January 31, 2026 (when the aforementioned CR expired). It affected all agencies covered under the CR, including FAA under DOT and TSA under DHS, and lasted three days until P.L. 119-75 was enacted on February 3, 2026. P.L. 119-75 incorporated eight regular appropriations acts that had been enacted on January 23, 2026 (P.L. 119-74), and a CR covering DHS appropriations through February 13, 2026.

On February 14, 2026, the DHS-specific CR expired, resulting in another DHS shutdown that lasted until P.L. 119-86 was signed into law on April 30, 2026. To date, this 75-day DHS shutdown is the longest partial government shutdown in U.S. history.

Agency Planning and Preparation

Executive branch departments and agencies prepare plans for government shutdowns in accordance with formal guidelines and periodic update requirements established by the Office of Management and Budget (OMB).[8] These plans provide information regarding the number of agency employees that are to be retained and the number that are to be furloughed in the event of a shutdown, along with a general categorization of retained employees (those excepted or exempted from furlough),[9] a description of the nature of activities to be performed by these employees, and the legal basis for retaining them.[10] One broad category describing many excepted FAA and TSA workers are employees who are "necessary to protect life and property."[11] Other categories include employees who perform activities expressly authorized by law, activities implied by law, or activities related to the President's constitutional duties and powers. Employees whose compensation is financed by carryover funds or by an appropriation specified in permanent law are generally exempted from furlough under an agency shutdown.[12]

[7] The Continuing Appropriations, Agriculture, Legislative Branch, Military Construction and Veterans Affairs, and Extensions Act, 2026 (P.L. 119-37), incorporated three regular appropriations acts for FY2026 and a continuing resolution (CR) covering the remaining nine appropriations acts through January 30, 2026.

[8] CRS Report R47693, *Government Shutdowns and Executive Branch Operations: Frequently Asked Questions (FAQ)*, coordinated by Taylor N. Riccard.

[9] Employees excepted from furlough include those holding positions that are unfunded due to a lapse in annual appropriations but who have been identified by agency plans as performing activities that must continue, whereas exempted employees are not subject to furlough because their compensation is not derived from annually appropriated funds. For further details see CRS Report R47693, *Government Shutdowns and Executive Branch Operations: Frequently Asked Questions (FAQ)*, coordinated by Taylor N. Riccard.

[10] "Section 124—Agency Operations in the Absence of Appropriations" in Office of Management and Budget (OMB), Circular A-11: *Preparation, Submission, and Execution of the Budget*, August 29, 2025, https://www.whitehouse.gov/wp-content/uploads/2025/08/a11.pdf.

[11] Circular A-11: *Preparation, Submission, and Execution of the Budget*, p. 3 of Section 124.

[12] "Section 124" in Circular A-11: *Preparation, Submission, and Execution of the Budget*.

Federal Aviation Administration

Under the DOT shutdown plan issued in January 2026, roughly 34,000 FAA employees would be excepted during a lapse in appropriations and about 10,500 would be furloughed.[13] Most who would be excepted have jobs that are considered necessary to protect life and property; others would continue to work because their duties are either expressly or implicitly authorized under statute or are funded outside of annual appropriations.

The plan lists several excepted activities rather than identifying specific employees or job positions that would be required to continue working. Compared with prior DOT shutdown plans, a broader range of activities are specified in the January 2026 plan.[14] Excepted activities include ATC operations and air traffic controller hiring and training. The plan specifically notes that almost 14,000 air traffic controllers would be excepted. Past DOT shutdown plans did not include air traffic controller hiring and training among excepted activities.[15] FAA has experienced a shortage of controllers, and inclusion of hiring and training activities in the January 2026 plan may reflect concerns that pauses in these activities could prolong efforts to hire and train new controllers. The January 2026 plan notes that training at the FAA Academy for new air traffic controllers would continue under any existing prior-year funds until those funds were exhausted and thereafter would continue as an excepted activity.

Activities relating to command, control, communications, and intelligence, as well as facility security inspections, would also be excepted under the plan. Limited elements of air traffic safety oversight, including activities of the voluntary safety reporting program event review committee and control tower operator certification and credentialing, also would be excepted.

Activities relating to the maintenance and operations of air navigation facilities and navigational aids would be excepted, along with certain support functions for reimbursable Department of Defense[16] and DHS activities. Activities concerning the development, evaluation, testing, and deployment of air traffic modernization technologies, equipment, and systems that sustain or improve safety would be excepted, which could encompass a broad range of work being conducted under a new effort called the "Brand New Air Traffic Control System."[17]

Commercial space launch oversight and licensing activities would be excepted, as would on-call accident investigation activities and foreign-relations-related functions concerning aviation-safety-related matters. Also, support functions necessary to provide timely payments of contracts and grants and certain congressional liaison functions would be excepted.

Various aviation safety functions, including flight standards field inspections, airworthiness directives, and medical certification activities, would be excepted under the plan. In contrast, during the 2018-2019 partial shutdown, most aviation safety inspectors were initially furloughed and were recalled throughout the shutdown on a rolling basis as needed to assure operational

[13] U.S. Department of Transportation (DOT), *Plans for Operations During a Lapse in Annual Appropriations by Operating Administration*, January 29, 2026, https://www.transportation.gov/sites/dot.gov/files/2026-01/2026.01.30%20-%20Lapse%20Plan%20-%20DOT.pdf.

[14] See, for comparison, DOT, *Operations During a Lapse in Annual Appropriations Plans by Operating Administration*, December 2018, https://www.transportation.gov/sites/dot.gov/files/docs/mission/budget/328471/consolidated-december-2018-shutdown-plan-final.pdf.

[15] DOT, *Operations During a Lapse in Annual Appropriations Plans by Operating Administration*, December 2018.

[16] The Department of Defense is "using a secondary Department of War designation" under Executive Order 14347 of September 5, 2025.

[17] Federal Aviation Administration (FAA), "Brand New Air Traffic Control System (BNATCS) Fact Sheet," December 4, 2025, https://www.faa.gov/newsroom/brand-new-air-traffic-control-system-bnatcs-fact-sheet.

safety.[18] Several of these aviation safety activities were restored or partially restored under a revised DOT shutdown plan issued on January 11, 2019.[19]

The 2026 plan notes that hazardous materials safety inspectors may be recalled as needed to maintain system safety and respond to incidents.[20] During the 2018-2019 partial shutdown, inspector recalls were used to respond to a wider range of FAA inspection activities.

Under the January 2026 plan, certain activities that are not dependent on annual appropriations would continue, including those funded under the Infrastructure Investment and Jobs Act (IIJA; P.L. 117-58), certain research and development activities funded by multiyear appropriations, airport planning and environmental services funded under Airport Improvement Program (AIP) contract authority, and work being performed under existing airport development grants. Additionally, employees of the aircraft registry office are expressly excepted from furlough by law, and the plan indicates that both aircraft and airmen registry services would be available during a lapse in appropriations.[21]

Transportation Security Administration

The DHS shutdown plan issued in September 2025 indicates that roughly 61,000 of about 64,000 TSA employees would be excepted or exempted from furlough during a lapse in appropriations.[22] The plan notes that these totals do not include Federal Air Marshal Service (FAMS) personnel, whose numbers are considered Sensitive Security Information. Therefore, the undisclosed number of FAMS employees excepted from furlough during a shutdown would be in addition to other excepted or exempted TSA employees.

The DHS plan provides a general summary rather than a detailed description of activities that would continue or cease during a lapse in appropriations. Activities that would continue include those deemed necessary by interpretation of existing law and the Constitution or necessary for the safety of human life or the protection of property. Also, law enforcement operations, counterterrorism watches, threat warnings, and related activities to gather or disseminate intelligence information would be expressly excepted. The plan also calls for retaining a minimal number of personnel necessary to maintain telecommunications for excepted activities.

Under the DHS plan, activities that would cease under a lapse in appropriations include most administrative, policy, and planning functions, including strategic or business activities, as well as research and development activities. Additionally, legislative, public, and intergovernmental affairs; regulatory development; and auditing functions would cease unless justified by an exception. Moreover, any training and development that is not deemed an excepted activity would cease for the duration of a shutdown.

[18] U.S. Congress, House Committee on Transportation and Infrastructure, Subcommittee on Aviation, *Putting U.S. Aviation at Risk: The Impact of the Shutdown*, hearing, 116th Cong., 1st sess., February 13, 2019.

[19] DOT, *Operations During a Lapse in Annual Appropriations Plans by Operating Administration*, December 2018, revised January 11, 2019.

[20] DOT, *Plans for Operations During a Lapse in Annual Appropriations by Operating Administration*, January 29, 2026.

[21] P.L. 115-254, §518.

[22] U.S. Department of Homeland Security (DHS), *Procedures Relating to a Lapse in Appropriations*, September 29, 2025, https://www.dhs.gov/sites/default/files/2025-09/2025_0930_dhs_procedures_related_to_a_lapse_in_appropriations.pdf.

Funding of Aviation Programs and Operations

FAA Operations and Programs

FAA operations and programs are funded under four broad budget accounts: (1) Operations and Maintenance (O&M) funds the administration, operation, repair, and maintenance of the NAS—principally air traffic operations and aviation safety programs; (2) Facilities and Equipment (F&E) provides funding for the acquisition and maintenance of air traffic facilities and equipment and for engineering, development, testing, and evaluation of technologies related to the federal air traffic system; (3) Grants-in-Aid for Airports (also known as AIP) funds the development of a nationwide system of public-use airports to meet the current capacity needs and the projected growth of civil aviation; and (4) Research, Engineering, and Development (RE&D) supports research on the improvement of aviation safety and operational efficiency and reduction of environmental impacts of aviation operations.

These four major FAA accounts are funded primarily through the Airport and Airway Trust Fund (AATF)—a dedicated U.S. Treasury fund—with the remainder coming from Treasury General Fund (general fund) appropriations. Revenue sources for the AATF include passenger ticket taxes, segment fees, air cargo fees, and fuel taxes paid by commercial and general aviation aircraft. The trust fund revenues from these excise taxes were estimated by the Congressional Budget Office (CBO) to exceed $21 billion in FY2026, leaving a balance of over $23 billion at the end of FY2026, including an uncommitted balance of more than $10 billion.[23]

The O&M account, funded by the AATF and general fund contributions, receives approximately 60% of total FAA appropriations—about $13.7 billion for FY2026. The F&E and AIP accounts were funded at $4 billion each in FY2026. The smallest account, RE&D, received $290 million for FY2026.

Some aviation programs are administered by other parts of DOT, such as the Essential Air Service program (EAS) under the DOT Office of the Secretary.[24] Established by the Airline Deregulation Act of 1978, EAS subsidizes airline services to approximately 175 eligible small or isolated communities. EAS is partially funded by overflight fees imposed on flights that fly over U.S.-controlled airspace but do not take off from or land in the United States; the remaining funding is from discretionary appropriations from the general fund. EAS funding for FY2026 was over $680 million, with about 75% from appropriations and nearly 25% (about $167 million) from overflight fees.[25] During the FY2026 government-wide shutdown that started on October 1, 2025, DOT issued a notice stating that the potential shortfall of appropriated EAS funding could lead to the program's suspension, which was averted after additional program funding was secured.[26]

[23] Congressional Budget Office (CBO), *Airport and Airway Trust Fund Baseline Projections*, February 2026, https://www.cbo.gov/data/baseline-projections-selected-programs#27.

[24] For more information about the Essential Air Service program, see DOT, "Essential Air Service," updated November 4, 2024, https://www.transportation.gov/policy/aviation-policy/small-community-rural-air-service/essential-air-service.

[25] DOT, "OST CJ FY 2027 Estimates," updated April 3, 2026, https://www.transportation.gov/mission/budget/ost-cj-fy-2027-estimates.

[26] DOT, "U.S. Transportation Secretary Sean P. Duffy Secures Critical Funding for Essential Air Service After Democrat-Led Shutdown Threatened Lapse in Funding," October 8, 2025, https://www.transportation.gov/briefing-room/us-transportation-secretary-sean-p-duffy-secures-critical-funding-essential-air.

Lapse in Authorization

Both the authority to collect aviation excise taxes and the authority to spend tax revenues from the AATF must be reauthorized periodically by Congress. FAA reauthorization refers to a periodic process through which Congress develops legislation to renew authorizing statutes as well as revise and update relevant laws governing civil aviation programs and functions primarily carried out by FAA. The FAA Reauthorization Act of 2024 (P.L. 118-63) authorized AATF taxes and revenue collections and civil aviation program expenditures through FY2028, with annual FAA expenditures ranging from approximately $20 billion to over $22 billion.

Congress would need to enact legislation to reauthorize or extend the authorities for aviation excise tax collection and for FAA program funding to prevent them from expiring. There have been a few cases when FAA authorization expired without Congress passing full reauthorization legislation, although usually short-term extensions were passed to avoid lapses in these authorities.

The most recent lapse in FAA's authority to collect AATF revenues and expend money from the trust fund occurred in 2011 and lasted for two weeks, from July 23 to August 5. FAA estimated that the 2011 lapse resulted in approximately $200 million of forgone trust fund revenues each week, or about $400 million for the entire lapse. Although the Airport and Airway Extension Act of 2011 (P.L. 112-27), signed into law on August 5, 2011, retroactively reinstated the taxes as though they had never expired, the Internal Revenue Service granted relief to airlines and to taxpayers who purchased tickets during the lapse.[27]

Suspension of Aviation Taxes

Congress also has the authority to suspend aviation excise taxes, which is not a lapse in authorization but may have a similar effect on trust fund revenue collections. In early 2020, air travel dropped significantly because of the COVID-19 pandemic. The Coronavirus Aid, Relief, and Economic Security (CARES) Act (P.L. 116-136), enacted on March 27, 2020, provided loans, loan guarantees, and payroll support programs, along with emergency program funding, as economic assistance to the U.S. aviation sector. Section 4007 of the CARES Act authorized suspension of aviation excise taxes through calendar year 2020 to reduce overall costs and encourage air travel. The suspended taxes included the 7.5% tax on airline passenger ticket sales, segment fees, the air cargo waybill tax, and the tax on aviation fuel used by commercial aircraft.

Lapse in Appropriations

With FAA reauthorization in place, most of FAA's spending also requires annual appropriations by Congress, except spending for AIP. AIP funding is disbursed as contract authority,[28] which permits funds to be committed prior to an annual appropriation. Funds associated with other accounts (i.e., O&M, F&E, and RE&D) may be spent only with a corresponding congressional appropriation.

In the event of a lapse in annual appropriations, FAA operations identified as excepted activities would continue. These include significant operations such as ATC services; safety oversight, including certain certification and inspection activities; facility security inspections; and accident

[27] U.S. Government Accountability Office, *Airport and Airway Trust Fund: Factors Affecting Revenue Forecast Accuracy and Realizing Future FAA Expenditures*, GAO-12-222, January 23, 2011.

[28] Airport Improvement Program (AIP) spending authority is based on contract authority, a type of budget authority that allows the federal government to incur an obligation before an appropriation. Liquidating authority granted by annual appropriations is needed eventually to pay off the obligations incurred using contract authority. The annual obligation limitation is analogous to an appropriation. Therefore, limitations of obligations restrict the amount of contract authority that may be committed under AIP.

investigations. Other activities generally considered nonessential would discontinue during a funding lapse (e.g., revaluations and audits, capital planning and financial analysis, and aviation rulemaking).[29]

Programs funded by laws other than annual appropriations acts are generally not affected by a lapse in appropriations. For example, programs and personnel funded through Division J of the IIJA (P.L. 117-58)[30] are not subject to annual appropriations and would not be affected. This includes the $12.5 billion in FY2025 (available through FY2029) for ATC modernization initiatives that was provided by P.L. 119-21, the FY2025 reconciliation law (sometimes referred to as the One Big Beautiful Bill Act).

Transportation Security Administration Funding

TSA derives revenue from the general fund. A portion of the TSA revenue allocated for aviation security functions is received from the collection of aviation security service fees charged to airline passengers. The fees are set in statute at $5.60 per passenger for a one-way trip and are capped to not exceed $11.20 for each passenger round trip purchased.[31] These fees are collected by airlines at the time of ticket purchase and remitted to the U.S. Treasury one month in arrears at the end of each calendar month. Some of the passenger security fees are treated as offsetting collections that are credited toward amounts appropriated for TSA aviation security operations, but only after certain other statutory obligations have been met.

By statute, the first $250 million collected in fees is deposited into the Aviation Security Capital Fund (ASCF), which was established to fund airport grants for the installation and integration of explosives detection systems and for other airport security capital improvement projects.[32] This money is therefore unavailable for TSA aviation security operations. This fee-based funding structure of the ASCF is set to expire at the end of FY2028 unless reauthorized.

Since FY2014, there has been an additional statutory requirement to treat a specified amount of fees received after the $250 million has been collected and applied to the ASCF as "offsetting receipts" to the general fund, essentially serving as a revenue source for general deficit reduction and not specifically for TSA aviation security operations.[33] The amounts to be treated in this manner are specified in statute and vary from fiscal year to fiscal year.[34] Specified amounts include $1,640 million for FY2026 and $1,680 million for FY2027. After FY2027, the requirement to treat specified amounts of fees collected in this manner is set to cease unless extended.

Additional passenger security service fees collected beyond the amounts applied to the ASCF and treated as offsetting receipts are placed in the general fund and are to be treated as "offsetting collections" against appropriated amounts specified for aviation security measures carried out by TSA and are to remain available until expended. Therefore, while the authority to collect these

[29] For the agency's FY2026 shutdown plan summary overview, see DOT *Plans for Operations During a Lapse in Annual Appropriations by Operating Administration*, January 29, 2026.

[30] The Infrastructure Investment and Jobs Act (IIJA; P.L. 117-58) appropriated an additional $25 billion from the General Fund of the U.S. Treasury over a five-year period (FY2022-FY2026), including $15 billion for airport infrastructure projects, $5 billion for FAA air traffic control facilities, and $5 billion for airport terminals.

[31] 49 U.S.C. §44940.

[32] 49 U.S.C. §44923(h).

[33] 49 U.S.C. §44940(i).

[34] 49 U.S.C. §44940(i)(4).

fees continues during a shutdown, offsetting collections received in a fiscal year cannot be expended by TSA until corresponding appropriations legislation is enacted.

By statute, the passenger security fees treated as offsetting collections are designated for, among other things, the "[s]alary, benefits, overtime, retirement and other costs of screening personnel, their supervisors and managers, and Federal law enforcement personnel deployed at airport security screening locations."[35] The fees can also be applied toward TSA's costs for training screeners; operating the FAMS program; employing Federal Security Managers; deploying federal law enforcement personnel who support airport and aviation security operations; performing background investigations on aviation security personnel; acquiring, operating, and maintaining equipment used for aviation security screening; making security-related capital improvements to airports; training armed pilots under the Federal Flight Deck Officers Program and providing self-defense training to airline crews; and overseeing civil aviation security research and development.[36]

While these funds that are applied as offsetting collections are to remain available until expended, statute does not grant TSA any express authority to expend these funds absent a corresponding appropriation. TSA may expend appropriated funds only for these purposes. Therefore, when there is a lapse in appropriations, TSA cannot expend any of these funds even though they may be available from amounts already collected and remitted to the Treasury by the airlines.

An additional consideration is that funds derived from passenger security fees are insufficient to cover all aviation security expenses. For example, in FY2025, TSA aviation security expenses totaled $10.383 billion.[37] However, offsetting collections from aviation security fees, after allocations to the ASCF ($250 million) and statutorily imposed offsetting receipts for deficit reduction ($1.6 billion in FY2025) had both been satisfied, amounted to $2.685 billion, offsetting roughly 26% of TSA's costs for aviation security.[38]

Congress could explore options to modify existing statutes to make funds collected from passenger security fees available for expenditure during a lapse in appropriations. Under existing statute, the authority to collect mandatory passenger security fees continues during a lapse in appropriations, and airlines must continue to remit fees that they collect. However, the existing statute may limit the availability of these funds, especially early in a fiscal year, since both the ASCF deposits and offsetting receipts for deficit reduction must be fully satisfied in sequence before funds received can be treated as offsetting collections against costs associated with providing aviation security functions. As currently prescribed in statute, those offsetting collections can be applied only against expressly appropriated amounts. Therefore, they generally cannot be applied as an offset until an appropriation or CR is enacted. Legislative options could explore mechanisms to make these fee collections available during a shutdown and to prioritize their use to pay salaries and benefits of excepted federal workers and for other costs associated with providing aviation security services during a lapse in appropriations.

[35] 49 U.S.C. §44940(a)(1)(A).

[36] 49 U.S.C. §44940(a)(1).

[37] TSA, "Security Fees," accessed August 27, 2026, https://www.tsa.gov/for-industry/security-fees.

[38] TSA, "Security Fees."

Shutdown Impact on Civil Aviation

Overall FAA Programs and Operations

FAA regulates the safety of aircraft, aircraft operators, safety-critical personnel, and the NAS. It also directly operates the NAS by providing ATC and air navigation services to users of the system. In general, the day-to-day operations of the NAS are considered necessary to protect life and property, and FAA employees whose jobs are central to the operation of the system are generally excepted from furlough during a shutdown. Similarly, certain regulatory oversight functions, such as inspections to ensure that users of the NAS (including airlines, other aircraft operators, and facilities that perform aircraft maintenance) are in compliance with operational safety standards, are also generally considered necessary to protect life and property. Other employees whose functions are not directly related to the day-to-day operation and safety of existing airspace and aircraft may be excepted, although Administration interpretations regarding which FAA employees are furloughed and which are excepted have varied. For example, during the 2018-2019 partial shutdown, employees performing aircraft certification oversight functions were initially furloughed, but some were recalled in mid-January 2019.[39] In contrast, the January 2026 DOT shutdown plan would expressly except certain certification activities.[40]

Certain regulatory activities, such as the issuance of airworthiness directives to correct safety issues identified on operational aircraft, would continue during a shutdown. Other rulemaking activities that are deemed less critical may be put on pause until a shutdown has ended. Also, administrative functions, including the administration and oversight of certain contracts and grants, may be paused during a shutdown. The January 2026 DOT plan excepts certain support functions to issue payments to contractors and grant recipients. Both AIP grants and contracts for ATC modernization paid from P.L. 119-21 funds, for example, would continue during a shutdown, and some FAA workers who administer these contracts and grants would remain on the job to disburse payments and fulfill financial obligations. Under the January 2026 DOT shutdown plan, various activities to modernize ATC systems that sustain or improve safety would be excepted, contrasting with prior plans that generally limited excepted ATC activities to the operation and upkeep of deployed systems and equipment. This in part reflects the funding for these activities provided for in the FY2025 reconciliation law that is not tied to annual appropriations.

Air Traffic Control Operations

The FAA Air Traffic Organization (ATO) handles about 44,000 flights operating under instrument flight rules (IFR) on average daily. During peak times, more than 5,500 IFR aircraft are actively flying within U.S. airspace. In addition, almost 40,000 additional visual flight rules (VFR) aircraft operate inside U.S. airspace on a typical day.[41] Some of these flights may receive in-flight ATC assistance, called "flight following," and those that operate to or from towered airports receive ATC services during taxi, takeoff, and landing.

[39] DOT, *Operations During a Lapse in Annual Appropriations Plans by Operating Administration*, December 2018, revised January 11, 2019.

[40] DOT, *Plans for Operations During a Lapse in Annual Appropriations by Operating Administration*, January 29, 2026.

[41] FAA, *Air Traffic by the Numbers*, June 2025, https://www.faa.gov/air_traffic/by_the_numbers/air-traffic-by-the-numbers-FY2024.pdf.

FAA employs over 14,000 air traffic controllers and more than 4,000 airway transportation system specialists responsible for maintaining air traffic and air navigation facilities, infrastructure, and technology.[42] FAA staff are deployed to 313 ATC facilities across the country, including 25 air route traffic control centers (ARTCCs) and combined control facilities, 25 stand-alone terminal radar approach control (TRACON) facilities, 121 combined tower/TRACON facilities, and 142 stand-alone ATC towers. In addition, 264 stand-alone ATC towers are part of the Federal Contract Tower program and are staffed by controllers employed by contractors to FAA or, in some cases, by National Guard controllers operating under an interagency arrangement.

During a shutdown, FAA ATC and air navigation system employees are excepted from furlough. Their pay is to be withheld until appropriations to fund salaries and benefits are enacted into law on the basis of past practices and statutes generally barring payment of salaries without a corresponding appropriation. Contract tower controllers also generally continue to work throughout a shutdown, although their pay may be disrupted if FAA is restricted from fulfilling contract obligations until the shutdown has ended. National Guard servicemembers and civilian employees assigned to National Guard-operated towers are generally excepted from furlough and continue to staff those airport control towers.

Workforce shortages may arise during a shutdown for various reasons. Increased callouts (employees requesting unscheduled leave or temporary furlough for personal reasons) can lead to acute shortages and strain on FAA's ability to provide full air traffic services across the system. Some, for example, pointed to flight disruptions linked to air traffic controller callouts on January 25, 2019, at key FAA facilities that triggered widespread delays at major East Coast airports during the 2018-2019 partial shutdown as a major factor prompting lawmakers to resolve their differences and enact legislation that ended the shutdown.[43] Particularly, on Friday, January 25, 2019, media reports attributed departure delays at LaGuardia Airport (LGA), Newark Liberty International Airport (EWR), and Philadelphia International Airport (PHL) to ATC staffing shortages.[44] These disruptions were attributed to specific staffing shortages at Washington and Jacksonville ATC centers that handle the busy high-altitude airspace along the East Coast corridor.[45] A three-week CR (P.L. 116-5) enacted later that day ended the shutdown.

During the October-November 2025 shutdown, Hollywood Burbank Airport (BUR) in California went unstaffed for a period in the afternoon and evening of October 6, 2025, when none of the air traffic controllers assigned to work that shift showed up.[46] The airport remained open, with aircraft self-separating by using standardized procedures and communications to taxi, take off, and land. Extended delays and numerous flight cancellations were reported.[47] Other airports

[42] FAA, "Air Traffic by the Numbers," updated July 30, 2025, https://www.faa.gov/air_traffic/by_the_numbers; FAA, "Airway Transportation Systems Specialists," updated October 6, 2022, https://www.faa.gov/jobs/career_fields/aviation_careers/atss_join.

[43] Ellie Kaufman and Rene Marsh, "The Government Shutdown Ended After Only 10 Air Traffic Controllers Stayed Home," *CNN*, updated February 6, 2019, https://www.cnn.com/2019/02/06/politics/ten-air-traffic-controllers-shutdown.

[44] "New York's LaGuardia Halts Flights as Shutdown Drags on," *Voice of America News*, January 25, 2019.

[45] Matthew Chayes and Ellen Yan, "Sick-Outs Snarl Air Traffic," *Newsday*, January 26, 2019.

[46] Jenny Jarvie and Clara Harter, "The Government Shutdown Disrupted Flights at Hollywood Burbank Airport. Could It Get Worse?," *Los Angeles Times*, updated October 7, 2025, https://www.latimes.com/california/story/2025-10-06/burbank-airport-air-traffic-control-tower-temporarily-unmanned-amid-government-shutdown.

[47] Jarvie and Harter, "The Government Shutdown Disrupted Flights at Hollywood Burbank Airport."

reported air traffic controller shortages and attributed delays to various staffing shortages across the NAS.[48]

During a shutdown, staffing shortfalls due to callouts can prompt system-wide scheduling challenges that may result in reliance on overtime utilization. In FY2025, air traffic controller overtime utilization was the highest in decades, at 7.3%.[49] Overtime utilization has been steadily increasing from around 2.1% between 2008 and 2011 to about 7% between 2022 and 2025.[50] Air traffic controller productivity—measured as time on position per 8-hour shift—declined from about 4.68 hours in 2008 to 4.01 hours in 2025, and FAA has acknowledged that it lacks specific tools to optimize controller utilization.[51] FAA has also acknowledged that "[c]hronic use of overtime leads to fatigue, controller burnout and ultimately loss of retention."[52] Retention losses could further increase dependence on overtime utilization and recruitment and training needs. Shutdown impacts and the public perception of those impacts can influence FAA's ability to recruit its future workforce, including air traffic controllers and other staff who support ATC operations.

To specifically address controller workload, fatigue, and work-life balance during the October-November 2025 shutdown, FAA took steps to reduce flight operations at several airports. On November 7, 2025, FAA implemented a phased reduction of flights at 40 "high-impact" airports, including most major hub airports in the United States.[53] Initially, on November 7, 2025, FAA imposed a 4% reduction in scheduled flights, which was stepped up to 6% by November 11, 2025, 8% on November 13, 2025, and 10% on November 14, 2025.[54] Airlines and scheduled commuter flight operators at these airports were required to trim their scheduled domestic flights to meet the reduced operating levels. On November 17, 2025, FAA published an order clarifying the manner in which schedule reductions were implemented to avoid disproportionate impacts on specific airlines, communities, or hours of the day.[55] The order imposed reductions on general aviation flights at high-impact airports, barred general aviation flights at 12 major hubs, eliminated air traffic services for VFR aircraft whenever FAA facility staffing levels were deemed inadequate to provide such services, and placed restrictions on commercial space launch and reentry activities during peak hours. The measures were canceled on November 19, 2025.[56] Although the October-November 2025 shutdown officially ended on November 12, 2025, with the passage of P.L. 119-37, flight reductions and limits on providing other air traffic services continued until November 19, 2025. Such lingering effects may reflect various organizational challenges in reconstituting ATC operations and scheduling, staffing, and fully restoring normal levels of service following a prolonged shutdown. Lessons learned from this experience may help

[48] Joel Rose, "Air Traffic Controllers Warn of 'Tipping Point' as U.S. Government Shutdown Drags On," *NPR*, November 5, 2025, https://www.npr.org/2025/11/05/nx-s1-5598420/air-traffic-controllers-government-shutdown.

[49] FAA, *The Air Traffic Controller Workforce Plan 2026-2028*, June 1, 2026, https://www.faa.gov/sites/faa.gov/files/Air-Traffic-Controller-Workforce-Plan-2026-2028_0.pdf.

[50] CRS analysis of data in FAA, *The Air Traffic Controller Workforce Plan 2026-2028*.

[51] FAA, *The Air Traffic Controller Workforce Plan 2026-2028*. When not at their assigned position, air traffic controllers either perform other non-control duties or are given breaks.

[52] FAA, *The Air Traffic Controller Workforce Plan 2026-2028*, p. 10.

[53] FAA, "DOT & FAA Announce Temporary 10% Reduction in Flights at 40 Airports," November 6, 2025, https://www.faa.gov/newsroom/dot-faa-announce-temporary-10-reduction-flights-40-airports.

[54] FAA, "Emergency Order Establishing Operating Limitations on the Use of Navigable Airspace," 90 *Federal Register* 50884-50886, November 12, 2025.

[55] FAA, "Cancellation and Replacement of Emergency Order Establishing Operating Limitations on the Use of Navigable Airspace," 90 *Federal Register* 51426-51429, November 17, 2025.

[56] FAA, "Cancellation of Emergency Order Establishing Operating Limitations on the Use of Navigable Airspace," 90 *Federal Register* 52132-52133, November 19, 2025.

inform potential actions by FAA and lawmakers to mitigate shutdown impacts to air traffic operations that may extend beyond the formal end of a shutdown.

Air Traffic Controller Hiring and Training

In addition to air traffic operations, past shutdowns have impacted FAA air traffic controller hiring and training. During the 2018-2019 partial shutdown, FAA Academy training was halted and trainees were furloughed,[57] which created roughly a one-month backlog in the training of newly hired air traffic controllers. This pause, along with a much longer hiring and training pause during the COVID-19 pandemic (see text box), has contributed to a persistent shortage of FAA air traffic controllers.

Pandemic Disruptions to Controller Initial Training

Closure of the FAA Academy during the COVID-19 pandemic had a significant impact on air traffic controller staffing. In March 2020, FAA suspended new-hire training, which did not restart until July 2020. When the academy reopened in July 2020, class sizes were reduced up to 50% to conform with social-distancing guidelines intended to mitigate the spread of infectious diseases. As a result, FAA Academy attendance in 2021 fell to less than half of pre-COVID-19 levels. Classes were brought up to 80% of capacity in February 2022, and FAA resumed normal capacity operations at the academy by FY2023. The FAA Academy had been closed for roughly four consecutive months in 2020 and thereafter operated at reduced capacity for more than two years. The pandemic, coupled with prior hiring shortfalls and a wave of controller retirements, has had lasting impacts on air traffic controller staffing.

Initiatives to address air traffic controller staffing needs include those setting increased hiring and training targets and expanding partnerships under FAA's Enhanced Collegiate Training Initiative. The initiative provides training equivalent to the FAA Academy through qualified college and university programs, thus allowing for the direct placement of new hires that have completed this training in operational ATC facilities.[58]

In FY2025, FAA implemented a plan to recruit, hire, and train new air traffic controllers to address the staffing shortage. Since 2024, FAA has achieved its annual hiring goals for new controllers, reversing what it described as a "decades-long air traffic controller staffing decline."[59] In FY2025, FAA slightly exceeded its goal of 2,000 new air traffic controller hires.[60]

Unlike in prior shutdowns, the FAA Academy remained open during the October-November 2025 shutdown.[61] In FY2026, Secretary of Transportation Sean Duffy reported that FAA had hired more than 2,000 air traffic controller trainees and met 94% of its hiring target in the fastest time ever, crediting a "streamlined hiring process."[62] This appears to indicate that the October-

[57] Bill Carey, "Government Shutdown Closes FAA ATC Training Academy," *Aviation Week Intelligence Network*, January 2, 2019.

[58] Section 437 of the FAA Reauthorization Act of 2024 (P.L. 118-63) directed FAA to set hiring to the maximum number of individuals it is able to train at the FAA Academy, subject to the availability of corresponding appropriations; FAA, "Collegiate Training Initiative (CTI) Schools," August 13, 2026, https://www.faa.gov/jobs/students/schools.

[59] FAA, "FAA Hits Air Traffic Controller Hiring Goal," September 24, 2024, https://www.faa.gov/newsroom/faa-hits-air-traffic-controller-hiring-goal.

[60] FAA, "FAA Hits Air Traffic Controller Hiring Goal," September 24, 2024, https://www.faa.gov/newsroom/faa-hits-air-traffic-controller-hiring-goal.

[61] Jim Grey, "How the 43-Day Shutdown Affected ATC Recruitment and Training," *VisaVerge*, November 12, 2025, https://www.visaverge.com/travel/how-the-43-day-shutdown-affected-atc-recruitment-and-training/.

[62] Secretary Sean Duffy (@SecDuffy), "Game Changer," X post, August 9, 2026, https://x.com/SecDuffy/status/2086574114215493969.

November 2025 shutdown had no long-term impact on FAA's ability to meet its controller hiring and training goals in FY2026, which is possibly attributable to the decision to except air traffic controller trainees and FAA Academy staff from furlough during this 43-day long stretch. FAA has set a hiring goal of 2,300 new air traffic controller trainees for FY2027, reflecting a multiyear strategy to rebuild and sustain the workforce.[63] According to FAA's 2026-2028 *Air Traffic Controller Workforce Plan*, the FY2026 total staffing target is roughly 12,500 controllers, based on forecast air traffic demand.[64] Currently, about 11,000 fully certified controllers are deployed and another 4,000 are in the training pipeline, including about 1,000 certified controllers who have transferred facilities and must train to learn the airspace and procedures of the new location.[65] FAA's hiring targets have been set to reach the target staffing level and to also account for replacements due to retirements, resignations, and anticipated trainee attrition. The controller hiring targets reflecting these considerations have been set at 2,200 for FY2026, 2,300 for FY2027, and 2,400 for FY2028.[66]

In FY2025, FAA implemented retention bonuses to help retain experienced retirement-eligible controllers.[67] Generally, controllers may retire with full benefits after 25 years of service and are subject to mandatory retirement at age 56; these bonuses primarily target controllers with 25 years of service who are under age 56, although some controllers with less than 25 years of service as an air traffic controller who may qualify for retirement on the basis of other government or military service may also be eligible.

Both the hiring surge and retention initiatives are intended to alleviate air traffic controller shortages. The controller shortage has contributed to increased reliance on overtime in recent years. Reliance on overtime can become more pronounced during a shutdown because of the higher numbers of callouts that may arise. Stress and financial hardship may become more pronounced when controllers are required to continue working without pay until appropriations are enacted, and these effects may be compounded by demands to work additional overtime hours. In its 2026-2028 *Air Traffic Controller Workforce Plan*, FAA identified potential improvements to workforce utilization and scheduling as one of the most significant opportunities to improve operational performance, highlighting the future use of automation tools for workforce scheduling as a significant focus area for improvement.[68] Two options that could help FAA improve resilience to impacts of a sustained government shutdown in the future are (1) a larger, more stable controller workforce and (2) improvements to scheduling tools that could help FAA improve air traffic controller overtime utilization.

Aviation Safety Oversight

During the 2018-2019 partial government shutdown, most aviation safety inspectors were initially furloughed. Inspectors were recalled on a rolling basis as needed to assure operational safety. FAA utilized both temporary and permanent recalls of inspection personnel throughout the shutdown. During the first week of the shutdown, 21 inspectors were recalled; by January 2, 2019, 12 days into the shutdown, 36 had been recalled. Thereafter, FAA continued to increase the number of inspectors recalled. By the final week of the shutdown, beginning on January 21, 2019,

[63] DOT, *Budget Estimates, Fiscal Year 2027: Federal Aviation Administration*, https://www.transportation.gov/sites/dot.gov/files/FAA_FY_2027_Budget_Estimates_CJ.pdf.

[64] FAA, *The Air Traffic Controller Workforce Plan 2026-2028*.

[65] FAA, *The Air Traffic Controller Workforce Plan 2026-2028*.

[66] FAA, *The Air Traffic Controller Workforce Plan 2026-2028*.

[67] FAA, *The Air Traffic Controller Workforce Plan 2026-2028*.

[68] FAA, *The Air Traffic Controller Workforce Plan 2026-2028*.

FAA had recalled a total of 2,148 inspectors, about half of its aviation safety inspector workforce at the time.[69] In addition, over the course of the shutdown, FAA recalled 27 inspectors working on aircraft certification, with the majority of those recalls occurring during the fourth week of the shutdown, the week of January 14, 2019. FAA stated that the number of Safety Assurance System inspection items and Flight Standards Service safety inspector activities both decreased during the shutdown compared with previous years.

In contrast, during the October-November 2025 shutdown, most aviation safety oversight functions were deemed to be excepted from furlough, and these activities generally continued during the shutdown period. While routine aviation safety inspection activities continued, some industry groups raised concerns regarding shutdown impacts on aircraft and operator certification activities, which in some cases delayed business expansion for operators, and potential longer-term impacts on FAA's ability to retain its high-skilled inspector workforce and recruit future talent.[70]

TSA Aviation Security Functions

During lapses in appropriations, TSA has asserted that the resulting pause in pay disbursements imposes significant personal financial burdens for many TSA screeners and other personnel who work while their pay is deferred.[71] These financial strains are associated with increased callouts and resignations during shutdowns, which can lead to closures of screening lanes and increased wait times for passengers. Although screeners and most other TSA personnel had their pay paused for the duration of the October-November 2025 shutdown and for a portion of the February-April 2026 partial shutdown, FAMS and most other law enforcement personnel across DHS were paid from funds allocated in the FY2025 reconciliation law. While TSA screeners and other excepted TSA employees initially went without paychecks during the 2026 shutdown, on March 27, 2026, President Trump issued a presidential memorandum directing DHS, in coordination with OMB, to "use funds that have a reasonable and logical nexus to TSA operations to provide TSA employees with the compensation and benefits that would have accrued to them."[72]

During the 43-day shutdown in October and November 2025, around 1,100 screeners separated from TSA, a year-over-year increase of about 25% compared with the same period in 2024.[73] On March 25, 2026, Ha McNeill, the senior official performing the duties of the TSA administrator, testified that about 460 TSA screeners had resigned in the five-week period since the beginning of the DHS funding lapse that began on February 14, 2026. Nationwide daily callout rates among TSA screeners increased from around 4% before the 2026 shutdown to 11% on average during shutdown days in February and March. Some airports reported callout rates as high as 40%-50% on certain days in March 2026, according to McNeill's testimony.[74] It was reported that on March 24, 2026, TSA worker callout rates at specific airports included 36% absent at Louis Armstrong New Orleans International Airport (MSY); 37% at both John F. Kennedy International Airport

[69] FAA, correspondence with CRS, circa June 20, 2019; for details regarding historical FAA inspector and aviation safety workforce staffing, see FAA, *Aviation Safety Workforce Plan 2020-2029*, https://www.faa.gov/sites/faa.gov/files/2021-11/fy20_avs_wfp.pdf.

[70] U.S. Congress, Senate Committee on Commerce, Science, and Transportation, Subcommittee on Aviation, Space, and Innovation, *Flying on Empty: How Shutdowns Threaten Air Safety, Travel, and the Economy*, 119th Cong., 1st sess., November 19, 2025, S. Hrg. 119-318.

[71] McNeill, Testimony in *Funding Lapse and Security Gaps*.

[72] U.S. President (Trump), "Memorandum on Paying Our Great Transportation Security Administration Officers and Employees," *Compilation of Presidential Documents*, DCPD202600214 (March 27, 2026).

[73] Trump, "Memorandum on Paying Our Great Transportation Security Administration Officers and Employees."

[74] McNeill, Testimony in *Funding Lapse and Security Gaps*.

(JFK) and Hartsfield-Jackson Atlanta International Airport (ATL); 40% at William P. Hobby Airport (HOU); and 43% at George Bush Intercontinental Airport (IAH).[75] Passenger wait times in queues for TSA screening checkpoints were reported as being as long as 3.5 hours at HOU and 4 hours at IAH, both serving Houston, TX, and the surrounding area.[76]

During the 2018-2019 partial government shutdown, unscheduled absences also rose, with an average callout rate of 7.4% between January 14 and January 24, 2019. This was more than twice the average callout rate of 3.3% during the same period in 2018.[77] TSA reported isolated impacts on passenger wait times across the system due to reduced staffing. At the national level, TSA determined that the average passenger wait time at regular checkpoints between December 22, 2018, and January 25, 2019, was 4.59 minutes, compared with 4.65 minutes during the same period one year earlier. Pre-Check passengers experienced an average wait time of 1.57 minutes versus 1.62 minutes one year prior.[78]

Passengers at certain airports experienced extended wait times at security checkpoints. According to the TSA statements reporting checkpoint operations at the busiest 42 U.S. airports between January 14 and January 24, ATL experienced the longest wait times, with the most frequent exceeding 30 minutes. Minneapolis-Saint Paul International Airport (MSP) came in second, with average wait times exceeding 30 minutes on four separate days, and Baltimore/Washington International Thurgood Marshall Airport (BWI) experienced wait times in excess of 30 minutes on two out of the eleven days examined. Wait times reached 88 minutes at ATL on January 14, but thereafter remained in the range of 39-47 minutes, and wait times at Detroit Metropolitan Wayne County Airport (DTW) reached 78 minutes on January 23. These delays observed in January 2019 were lower than the multi-hour wait times reported at some airports in February and March 2026.

TSA paused screener hiring and training during the 2025 and 2026 shutdowns. TSA raised concerns that attrition combined with a pause in hiring and training created significant readiness and operational challenges. TSA noted that hiring and onboarding screeners, a process that involves interviews, assessments, background checks, and a comprehensive training program, typically requires about 4-6 months to ensure that new hires are fully qualified to perform security screening functions.[79] As a consequence, losses due to increased attrition during a government shutdown cannot be quickly filled, and the lag in filling these positions can be exacerbated by potential backlogs in onboarding and training new hires, a situation that can persist for several months beyond the end of a shutdown. The timing of the February-March 2026 partial shutdown was cited as particularly concerning due to the need to prepare for increased air travel demand surrounding spring break and the World Cup soccer tournament and to hire and train sufficient numbers of screeners to meet these demands and address the increased attrition rates.[80]

During the 2018-2019 partial government shutdown, TSA recalled more than 200 employees to mitigate impacts on hiring, onboarding, and training. This included 129 people to support continued hiring of screeners and 82 training instructors to conduct basic training program classes

[75] Sohail Husain, "House Homeland Security Committee Discusses Impacts from DHS Shutdown," *Transportation Weekly*, Eno Center for Transportation, March 27, 2026.

[76] Husain, "House Homeland Security Committee Discusses Impacts from DHS Shutdown."

[77] TSA, correspondence with CRS, circa June 20, 2019.

[78] TSA, correspondence with CRS, circa June 20, 2019.

[79] McNeill, Testimony in *Funding Lapse and Security Gaps*.

[80] McNeill, Testimony in *Funding Lapse and Security Gaps*.

that began on December 31, 2018, at the TSA Academy at the Federal Law Enforcement Training Center in Glynco, GA.[81]

Airports, Airlines, and Related Businesses

Longer waits at security lines and delayed and canceled flights may result in lost work time and productivity for travelers, although CRS is not aware of any quantitative assessment of this. Immediate impacts on airlines, airports, and related businesses were primarily the result of reduced government, business, and leisure travelers. In addition to lost revenue from airline passengers, including federal workers and government contractors whose air travel is usually canceled during a government shutdown, airport vendors may have forgone a portion of their revenue that derives from federal workers at airports, such as TSA security screeners, who may make fewer food purchases and other consumer transactions because of their lack of income during a shutdown.[82]

Although the immediate effects of a government shutdown to aviation operations and air travel tend to be limited, negative impact on air travel can become more pronounced during a prolonged shutdown when TSA screeners and/or FAA air traffic controllers begin to miss work shifts. For example, during the 2018-2019 shutdown, the increase in unscheduled absences contributed to longer wait times at airport security checkpoints, discussed above, and temporary closures of parts of terminals or concourses at certain airports due to lack of TSA staff.

Airlines and other aircraft operators, including charter operators and other companies requiring FAA operator certification, may face delays in adding new planned routes and new aircraft during a shutdown, as these actions typically require FAA approvals that may be delayed or disrupted because of staff furloughs. Additionally, aircraft and aircraft component manufacturers may face delays obtaining FAA approvals for design modifications, changes to production processes, and other actions requiring FAA certification actions. This could result in delays in the delivery of aircraft, aircraft engines, and certain aircraft parts, which could impact airline service and schedules long after a shutdown ends. Similarly, approvals for new aircraft maintenance facilities or the expansion of existing aircraft maintenance facilities may face certification delays during a shutdown due to the reduced FAA staffing previously discussed. This could affect passenger and cargo airlines and other aircraft operators who may face longer down times before aircraft can be returned to service.[83] While these types of disruptions have been mentioned by the aviation industry, CRS has not identified specific data or quantifiable examples of how a shutdown may affect FAA certification activities relating to airlines, other aircraft operators, maintenance facilities, and aviation manufacturing.

Partial Closures of Airport Terminals and Concourses During 2019 Shutdown

Increased wait times and partial closures of terminals and concourses during the 2019 shutdown were reported at multiple major airports across the United States, including IAH, Miami

[81] TSA, correspondence with CRS, circa June 20, 2019.

[82] While other factors are included in their calculations beyond the immediate impacts such as longer lines and travel disruptions, the U.S. Travel Association estimated that a shutdown would cost $1 billion per week to the travel economy. See letter from Geoff Freeman, President and CEO, U.S. Travel Association, to Sen. John Thune et al., September 25, 2025, https://www.ustravel.org/sites/default/files/2025-09/US%20Travel%20Letter%20-%20Govt%20Shutdown%202025.pdf.

[83] Senate Subcommittee on Aviation, Space, and Innovation, *Flying on Empty*, S. Hrg. 119-318.

International Airport (MIA), Washington Dulles International Airport (IAD), and ATL.[84] CRS obtained confirmation from the Airport Council International-North America that these airports temporarily closed parts of their terminals or concourses to mitigate TSA staffing shortages.

For example, on Monday, January 14, the day that passengers at ATL reportedly experienced the record 88-minute wait time at security checkpoints, at least six lanes at domestic terminal checkpoints were closed due to lack of TSA staff.[85] When MIA closed a terminal for departures, it remained open for arrivals. This allowed TSA to direct screeners to other security checkpoints at the airport so that those posts could be fully staffed. At IAD, one of the two main security checkpoints was temporarily closed due to a snowstorm. The snowstorm resulted in more employees calling in sick, which exacerbated the TSA staffing shortage.[86]

Flight Delays and Temporary Flight Reductions During 2025 Shutdown

Starting on November 7, 2025, FAA implemented emergency orders reducing daily scheduled domestic flights across 40 high traffic airports; the orders were lifted on November 17, 2025, as normal operations commenced.[87] These flight reductions, as stated by Airlines for America (A4A), a trade organization representing several major U.S. air carriers, exacerbated the operational disruptions that airlines were experiencing from delays due to reduced air traffic controller staffing. A4A indicated that its member airlines "incurred more than 15,600 staffing-related delays and more than 7,100 staffing-related flight cancellations, disrupting 2.3 million passengers.… At the 40 target airports, applying the 6 percent directive translates to approximately 875 cancellations and 60,000 disrupted passengers per day[,] which is more than 13 times the normal rate [emphasis removed]."[88]

Additionally, A4A noted broad "secondary impacts" that were triggered by air traffic controller staffing issues:

---

[84] Sen. Catherine Cortez Masto, "Cortez Masto, Rosen Call on DHS and DOT to Outline Strategies for Airport Security Given TSA Shortages During Government Shutdown," January 23, 2019, https://www.cortezmasto.senate.gov/news/press-releases/cortez-masto-rosen-call-on-dhs-and-dot-to-outline-strategies-for-airport-security-given-tsa-shortages-during-government-shutdown.

[85] TSA statements on checkpoint operations, January 15-25, 2019. These statements provided selected airport security checkpoint operations statistics from January 14, 2019, through January 24, 2019. Kelly Yamanouchi, "Long Security Lines Plague Hartsfield-Jackson Amid Federal Shutdown," *Atlanta Journal-Constitution*, January 14, 2019, https://www.ajc.com/business/long-security-lines-plague-hartsfield-jackson-amid-federal-shutdown/hpga7i3kgEQ3KdLcIHVqQP/; and "Number of No-Show Airport Security Screeners Soars in Shutdown," *ABC 7 Eyewitness News*, January 14, 2019, https://abc7ny.com/post/number-of-no-show-airport-screeners-soars-in-shutdown/5078630/#:~:text=Atlanta's%20wait%20times%20stretched%20well,began.

[86] Email correspondence between CRS and Airports Council International-North America, June 28, 2019.

[87] The emergency order for temporary flight reductions included a prohibition on business aviation operations at 12 of these airports. See FAA, "DOT & FAA Announce Temporary 10% Reduction in Flights at 40 Airports"; DOT, "U.S. Transportation Secretary Sean P. Duffy & FAA Administrator Bryan Bedford Freeze Flight Reduction Plan at 6% in Response to Strong Air Traffic Controller Staffing Metrics," November 12, 2025, https://www.transportation.gov/briefing-room/us-transportation-secretary-sean-p-duffy-faa-administrator-bryan-bedford-freeze; FAA, "DOT & FAA Announce Reduction of Required Flight Cuts to 3 Percent," November 14, 2025, https://www.faa.gov/newsroom/dot-faa-announce-reduction-required-flight-cuts-3-percent; FAA, "DOT & FAA Announce Termination of FAA Emergency Order, Return to Normal Operations," November 16, 2025, https://www.faa.gov/newsroom/dot-faa-announce-termination-faa-emergency-order-return-normal-operations; and Sarah Fortinsky, "FAA Limiting Private Flights at 12 Major Airports: Aviation Group," *The Hill*, November 10, 2025, https://thehill.com/policy/transportation/5598754-faa-restricts-private-flights/.

[88] Statement of President and CEO Christopher T. Sununu, Airlines for America, in Senate Subcommittee on Aviation, Space, and Innovation, *Flying on Empty*, S. Hrg. 119-318.

> In many instances, even those passengers who successfully reach their destination encountered long departure delays, extended tarmac times and highly unpredictable arrival times. For the airlines, many flight crews were timing out (per regulated limits) or missing connections because of late aircraft arrivals and equipment mis-positioning.[89]

Travel agencies also felt the impact from travel disruptions induced by government shutdowns, as reported by the American Society of Travel Advisors:

> Travel advisors overwhelmingly reported that the shutdown created significant financial strain for their agencies, largely due to widespread flight disruptions that required hours of unpaid rebooking work and lost commissions when trips were canceled. Many advisors noted a sharp decline in new bookings, with clients delaying or abandoning travel plans entirely because of uncertainty, fear of being stranded, or financial stress from missed paychecks. For Federal government employees and contractors hit directly by loss of pay, even long-planned vacations were canceled in order to free up funds for basic living expenses.… In fact, nearly two-thirds reported clients delaying travel decisions. The hesitation spanned both leisure and business travelers and resulted in revenue drops averaging 25 percent for agencies.[90]

Potential Legislative Actions

Members of Congress may or may not opt to pass legislation to mitigate potential impacts that might be caused by a future government shutdown. Appropriators might decide that "the existing array of statutes and chamber rules strikes the appropriate balance between continuing government services and asserting Congress's power of the purse."[91] Congress could choose to establish in permanent law that stop-gap appropriations become available upon a lapse in regular appropriations. Congress could opt to fund certain functions while it continues deliberations on broader government funding during a lapse.

Following the 2018-2019 shutdown, some Members of Congress introduced bills aiming to prevent future shutdowns and mitigate their effects on federal workers and the economy. For example, the Government Shutdown Prevention Act of 2019 (S. 147) and the Ban Government Shutdowns Act (H.R. 809), both introduced in the 116th Congress, sought to avoid funding gaps by providing temporary continuing appropriations if regular appropriations bills were not passed on time.

Some Members of Congress introduced bills to ensure the continuation of aviation operations during the lapse in appropriations from October 1, 2025, through FY2026, until funding by normal appropriations was restored. Some bills focused on continuing appropriations to pay essential government workers or essential FAA and TSA personnel during a shutdown, while others offered to establish certain types of automatic CRs that would provide a fallback funding source for ATC operations and other core aviation safety operations in the event of potential funding gaps. The bills discussed below show some legislative routes Congress could consider.

The Shutdown Fairness Act (S. 3012) would have provided appropriations for federal agencies to pay excepted employees during a government shutdown in FY2026. The bill specifies that the term *excepted employee* includes certain contractors who support federal employees during a government shutdown and members of the Armed Forces who are on active duty. The Keep

[89] Sununu, Statement in S. Hrg. 119-318.

[90] Statement of President and CEO Zane Kerby, American Society of Travel Advisors, in Senate Subcommittee on Aviation, Space, and Innovation, *Flying on Empty*, S. Hrg. 119-318.

[91] CRS In Focus IF13292, *Government Shutdowns: Legal Causes in Brief*, by Sean Stiff and Matthew D. Trout.

America Flying Act of 2026 (H.R. 5851, S. 3031), introduced in October 2025, would have provided continuing appropriations to pay FAA air traffic controllers and other essential FAA employees and contractors, as well as TSA employees and contractors engaged in screening operations and other aviation security duties, in the event of a government shutdown in FY2026.

Legislative Proposals Focused on FAA

Two bills introduced in November 2025 would provide appropriations for FAA ATC and core aviation safety operations during future government shutdowns, albeit from different funding sources. The Aviation Funding Stability Act (S. 1045) would tap into the AATF, while the Aviation Funding Solvency Act (H.R. 6086) would provide funding derived from the Aviation Insurance Revolving Fund as long as the fund maintains a minimum balance of $1 billion.[92] H.R. 6086 would also permanently reauthorize the FAA non-premium war risk insurance program, which provides war risk insurance without premium to commercial carriers engaged in operations deemed essential to support U.S. foreign policy or national security. The program is scheduled to expire at the end of FY2028.[93]

The Aviation Education Remaining Operational (AERO) Act (H.R. 2563) would mandate that the FAA Academy in Oklahoma City, OK, including air traffic controller training conducted there, remains open for the duration of any lapse in FAA appropriations. It would require that all FAA employees providing services to the academy and students at the academy be excepted from furlough during a lapse in FAA appropriations.

Legislative Proposals Focused on TSA

The Transportation Security Administration Pay Act of 2026 (S. 4073, S. 4127) sought to appropriate for FY2026 any Treasury funds not otherwise appropriated to provide for pay and benefits to TSA employees covering a period beginning on February 14, 2026, and would have been applied retroactively as if enacted on February 13, 2026. The use of these appropriated amounts was to be limited to TSA employees affected by the lapse in appropriations during the partial shutdown that began on February 14, 2026, and would have been charged against any future amounts appropriated to TSA once enacted into law. The special appropriations that would have been made available under the terms of the bill and the corresponding authority to pay TSA personnel from those appropriations would have terminated once a subsequent TSA appropriations measure was enacted or at the conclusion of FY2026.

The Pay TSA Act of 2026 (H.R. 7941) would repeal the current use of passenger security fees as offsetting receipts for deficit reduction (see "Transportation Security Administration Funding") and instead would establish a Transportation Security Trust Fund to be funded by passenger security fees. Under the provisions of the bill, all money deposited in the fund would be available, without further appropriation and without any fiscal year limitation, for funding salaries and

[92] The Aviation Insurance Revolving Fund (AIRF) finances insurance programs for the aviation industry that generally are unavailable in the private insurance market, such as the War Risk Insurance Program. According to CBO estimates, the unobligated AIRF balances at the beginning of FY2026 were about $2.7 billion. Most of that amount was invested in Treasury securities; the principal came from insurance premiums collected for a program that has since expired. In 2025, the AIRF was credited with about $150 million in interest and recorded $2 million in gross outlays, mainly for administrative expenses. See CBO, *H.R. 6086, Aviation Funding Solvency Act*, cost estimate, March 26, 2026, https://www.cbo.gov/system/files/2026-03/hr6086.pdf.

[93] For more information about the FAA Aviation Insurance Program, see "Premium War Risk Insurance" in FAA, "Aviation Insurance Program," updated May 21, 2024, https://www.faa.gov/about/office_org/headquarters_offices/ash/ash_programs/aviation_insurance.

benefits of TSA personnel; TSA training and workforce support; passenger and baggage screening operations; checkpoint and screening technology; airport security infrastructure and equipment; and research, development, and deployment of advanced aviation security systems. Under the proposal, whenever there is a lapse in TSA appropriations, money in the fund would remain available, and language in the bill would expressly prioritize use of money in the fund for salaries, benefits, and overtime compensation for TSA screeners; maintaining staffing levels at aviation security screening checkpoints; and other operational expenses directly supporting frontline aviation security personnel. Once these objectives were met, the bill would allow for secondary use of funds for the procurement, deployment, and sustainment of checkpoint technology; baggage screening equipment and related infrastructure; maintenance and modernization of airport security systems; and grants to airports for aviation security technology improvements. The bill would also establish an Aviation Security Technology and Infrastructure account to support aviation security technology and infrastructure modernization.

Author Information

Bart Elias
Specialist in Aviation Policy

Rachel Y. Tang
Analyst in Transportation and Industry

Disclaimer

This document was prepared by the Congressional Research Service (CRS). CRS serves as nonpartisan shared staff to congressional committees and Members of Congress. It operates solely at the behest of and under the direction of Congress. Information in a CRS Report should not be relied upon for purposes other than public understanding of information that has been provided by CRS to Members of Congress in connection with CRS's institutional role. CRS Reports, as a work of the United States Government, are not subject to copyright protection in the United States. Any CRS Report may be reproduced and distributed in its entirety without permission from CRS. However, as a CRS Report may include copyrighted images or material from a third party, you may need to obtain the permission of the copyright holder if you wish to copy or otherwise use copyrighted material.